

APEX INDUSTRIAL SUPPLY
1200 Industrial Parkway, Suite 400 | Columbus, OH 43215
Tel: (614) 555-0100 | www.apexindustrial.com

MASTER SUPPLY AGREEMENT
Contract ID: CTR-2026-1011

1. PARTIES

This Master Supply Agreement ('Agreement') is entered into as of March 03, 2024 between Apex Industrial Supply, Inc. ('Supplier'), a Delaware corporation with principal offices at 1200 Industrial Parkway, Suite 400, Columbus, OH 43215, and Caterpillar Inc. ('Customer'), for the supply of industrial products as described herein.

Customer Type: End Consumer
Customer Region: South
Customer Contact: Lisa Thompson, Procurement Manager

2. TERM AND EFFECTIVE DATE

This Agreement shall be effective from March 03, 2024 through March 03, 2027, a period of 3 years. Either party may terminate this Agreement with ninety (90) days written notice. Upon expiration, the Agreement shall automatically renew for successive one-year periods unless either party provides written notice of non-renewal at least sixty (60) days prior to the expiration date.

3. PRODUCTS AND PRICING

This Agreement covers products in the following categories: Fasteners, Adhesives.

Pricing shall be in accordance with the following volume-based tier structure:

Tier 1 (1-99 units): \$13.99 per unit
Tier 2 (100-499 units): \$12.87 per unit
Tier 3 (500+ units): \$11.89 per unit

Prices are subject to the annual price adjustment provisions described in Section 6. All prices are FOB Supplier's warehouse unless otherwise specified.

4. TRADE TERMS

Trade Type: Early Payment Discount
Trade Value: \$54,000.00
Payment Schedule: Quarterly
Payment Terms: Net 60

Minimum Volume Commitment: 7,850 units over the contract term.

5. SPECIAL PROVISIONS (END-CONSUMER)

Annual Price Escalation: Prices may be adjusted annually based on Fixed 3% index, capped at 3% per year.

6. GENERAL TERMS

Confidentiality: Both parties agree to maintain confidentiality of pricing, trade terms, and volume data disclosed under this Agreement.

Force Majeure: Neither party shall be liable for delays caused by circumstances beyond reasonable control.

Governing Law: This Agreement shall be governed by the laws of the State of Ohio.

Entire Agreement: This Agreement, together with all Exhibits, constitutes the entire understanding between the parties.

APEX INDUSTRIAL SUPPLY, INC. CATERPILLAR INC.

Authorized Signature Authorized Signature
Date: March 03, 2024 Date: March 03, 2024